HILCHOT SEFIRAT HAOMER AND SHAVUOT – SHULHAN ARUKH

Missed a Night of the Omer? Hadash, Bar Misvah, Converts & Omer Customs

Siman 489 Pt. 3 & 493

Siman 489 (Continued)

Se'if 7 — Forgetting to Count at Night: Counting During the Day

Shulchan Aruch: If you forgot to count the entire night — count during the day **without a bracha**.

Background: The Machloket

Opinion	Ruling	Reasoning
Majority of Rishonim (including Rambam)	Count during the day **with** a bracha	Temimot means count at the beginning of the night le-chatchila. But just as counting at the end of the night (before dawn) is valid with a bracha, so too during the day.
Ba'al Halachot Gedolot (Bahag) — R. Shimon Kayara, ~8th century	Cannot count with a bracha during the day	Temimot (completeness) means counting must be within the nighttime boundary. Dawn to dawn is the outer limit. Once day comes, the temimot is lost for that night.

Halacha (Shulchan Aruch): Count during the day **without a bracha** — accommodating the Bahag's stringency. This is the accepted practice.

Subsequent nights: Continue counting **with a bracha** from the following night onward. Even according to the Bahag, counting during the day preserves the continuity — you haven't missed a full 24-hour period.

Origin of counting at Shacharit: The Sephardi minhag of counting the Omer during Shacharit (morning prayers) developed from this — as a safety net for those who forgot to count at night. According to the majority of Rishonim, counting during the day is fully valid.

Se'if 8 — Missing an Entire Day: The Major Machloket

Shulchan Aruch: If you forgot an entire day (didn't count at night **and** didn't count the following day) — whether it was the first day or any other day — continue counting subsequent nights **without a bracha**. But if you're **doubtful** whether you missed a day, continue counting **with a bracha**.

The Core Debate: One Mitzvah or 49 Separate Mitzvot?

This is a debate going back to the Geonim (pre-Rishonim era):

Opinion	View	Consequence of Missing a Day
Bahag (Ba'al Halachot Gedolot)	The 49 days form one unit. Temimot demands completeness across all 49.	Missing a full day breaks the temimot. Cannot continue with a bracha.
Rav Hai Gaon	Each night is a **separate mitzvah**.	Missing one night doesn't affect subsequent nights. Continue with a bracha.

Rav Hai Gaon's two answers to "What about temimot?":

1. You can "complete" the temimot by counting the missed day retroactively the next night — e.g., say "Tonight is 32" and then add "and yesterday was 31." (Not accepted in practice.)
2. Temimot simply teaches that you should count at the beginning of the night — it doesn't mean missing one day invalidates the entire count.

The Final Halacha

Scenario	Ruling
Definitely missed an entire day	Continue counting every night — but **without a bracha** (because of the Bahag). Do NOT stop counting!
Doubtful whether you missed	Continue counting **with a bracha** — because of sfek sfeka (double doubt).

The Sfek Sfeka (Double Doubt) Explained

When you're **doubtful** whether you counted:

- **Doubt 1:** Did I count yesterday or not? Perhaps I did.
- **Doubt 2:** Even if I didn't count — perhaps the halacha follows Rav Hai Gaon that each night is a separate mitzvah and I can continue with a bracha anyway.

Two independent doubts = sfek sfeka = may be lenient even with a potentially de'oraita matter.

This principle extends: Any doubt about the count (e.g., you only counted days but not weeks) is sufficient to allow continued counting with a bracha. Only a definite missed 24-hour period triggers counting without a bracha.

As learned last week: Even counting from after Plag HaMincha (before sunset) is sufficient to avoid "missing a day" — allowing continued counting with a bracha on subsequent nights.

Practical Applications of Se'if 8

1. Knowing in Advance You'll Miss a Night
Question: If I know I have surgery scheduled and will be unconscious for a full day during the Omer — should I even begin counting with a bracha on night one?

The Chida's opinion: Don't begin counting with a bracha if you know you'll miss a day.

Majority of Poskim (accepted halacha): Count with a bracha from night one. When the missed day comes, stop saying the bracha from then on. Why?

Even according to the Bahag, there is a mitzvah each night. The bracha is said each night (not once at the beginning for all 49). This proves each night has independent value. The Bahag's point is only that once you miss a day, the temimot aspect is lost and you can't say a bracha — but there's still a mitzvah to count.

2. A Bar Mitzvah Boy
Scenario: A boy counted every night of the Omer as chinuch (educational obligation). He becomes Bar Mitzvah mid-Omer. Can he continue counting with a bracha?

Opinion	Ruling	Reasoning
Chacham Ovadia	Count **without** a bracha	The pre-Bar Mitzvah countings were a lower-level obligation (chinuch). Not the same as full adult obligation. Lacks temimot.
Kaf HaChaim, Rav Ben Tzion Abba Shaul, many Ashkenazi Poskim (majority)	Count **with** a bracha	Multiple reasons (see below)

Reasons to allow the Bar Mitzvah boy to continue with a bracha:

1. **Factual completeness:** He has physically counted every night. Even if the obligation was different, the count itself is complete.
2. **Not coming from nothing:** Unlike a convert (see below), the child had a genuine obligation — chinuch. It's a real obligation, just a different category.
3. **Neder from age 12:** From age 12, a child's vows have halachic validity. By counting every night, he's accepted it upon himself like a neder, creating a chiyuv even before Bar Mitzvah.
4. **Sfek sfeka:** Even without all the above — there's still the fundamental doubt whether each night is a separate mitzvah (Rav Hai Gaon). Combined with the other reasons, there's plenty to rely on.

3. A Convert (Ger)
Scenario: A person converts mid-Omer. Even if they counted every night before conversion — can they continue with a bracha?

Halacha: Count **without a bracha** for the rest of that year's Omer.

Why is this different from a Bar Mitzvah boy? Before conversion, the person had **no** obligation whatsoever. Not even chinuch. The pre-conversion counting was meaningless halachically — there was no mitzvah being performed at all. Therefore there's no temimot and no basis for a bracha.

4. An Onen (Before Burial of a Close Relative)
Scenario: A close relative (one of the seven relatives) dies. The person is an onen — exempt from all positive mitzvot. If burial is delayed beyond 24 hours, the person will miss an entire day of counting.

Halacha: The onen should count **without a bracha**, even though an onen normally cannot perform mitzvot.

Why is this permitted?

1. **The reason for onen exemption:** To ensure full focus on honoring the deceased and arranging burial. Counting the Omer takes literally 10 seconds — it won't detract from this focus. (Unlike the full range of brachot and prayers, which would.)

2. **Minority opinion:** Some hold an onen is only *exempt* from mitzvot, not *forbidden*. If he chooses to, he can. We can factor this in.
3. **Special concern:** If he misses a full day, he'll lose the bracha for the rest of the Omer. This added consideration justifies allowing the brief counting.

What to say: Just the counting itself. No Leshem Yichud, no HaRachaman, no LaMenatzeach, no Ana BeKoach — just the bare count. "Today is X days to the Omer, which is Y weeks and Z days."

Se'if 9 — Shabbat, Yom Tov, and Motzaei Shabbat

Shulchan Aruch:

Situation	When to Count
Leil Shabbat / Leil Yom Tov	Count **after Kiddush** in the synagogue (because we want to bring in Shabbat/Yom Tov as early as possible — Kiddush first)
Motzaei Shabbat / Motzaei Yom Tov	Count **before Havdalah** (because we want to draw out Shabbat/Yom Tov as long as possible — delay Havdalah)
When last day of Pesach falls on Motzaei Shabbat (as this year)	Count **before** the combined Kiddush/Havdalah — even though Kiddush is being said, the Havdalah element means we delay it to extend Shabbat

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Se'if 10 — The Prohibition of Chadash (New Produce)

Shulchan Aruch: It is **forbidden to eat chadash (new produce) even nowadays** — whether bread, parched grain, or any preparation of the five grains — until the beginning of the 18th of Nissan (outside Israel) or the 17th of Nissan (in Israel).

What Is Chadash?

The Torah (Vayikra 23:14): "Ve-lechem ve-kali ve-charmel lo tochlu ad etzem ha-yom ha-zeh, ad havi'achem et korban Elokeichem" — You shall not eat bread, parched grain, or fresh grain until the day you bring the Omer sacrifice.

The concept: Before partaking of the primary sustenance (the five grains) each year, we must recognize it comes from Hashem by first bringing the Korban Omer.

How it works:

When Did It Take Root?	Status
Before the 16th of Nissan (before Pesach)	Permitted once the Omer is brought / once the date passes
After the 16th of Nissan (after Pesach)	Forbidden (chadash) until the **following** Pesach passes

Applies only to: The five grains (wheat, barley, spelt, oats, rye). Does **not** apply to fruit, vegetables, rice, etc.

Nowadays Without the Omer Sacrifice

Location	When Chadash Becomes Permitted
Eretz Yisrael	Beginning of the night of 17th Nissan (3rd night of Pesach)
Outside Israel	Beginning of the night of 18th Nissan (4th night of Pesach) — because of two-day Yom Tov

Why later without the Temple? When the Omer was brought on the morning of the 16th, produce was permitted immediately that afternoon. Without the sacrifice, we must wait until the entire day passes.

Does Chadash Apply Outside Israel?

The key phrase: "B'chol moshvoteichem" — "in all your dwelling places."

Interpretation	Meaning	Who Holds This
Everywhere — Israel and abroad	Chadash applies internationally	**Rambam, Rif, Rosh, Ran** (vast majority of Rishonim)
Only after settling the Land	Chadash applies only in Eretz Yisrael	**Rabbeinu Baruch of Magentza** (Ba'al HaTerumah) — minority

Why Were Many Ashkenazim Historically Lenient?

The problem: In Europe (especially Poland), the agricultural cycle was different from the Middle East. "Spring wheat" was planted after Pesach, took root after Pesach, and was harvested months later — creating a widespread chadash problem.

The Bach (R. Yoel Sirkis, ~500 years ago) justified the lenient practice with two arguments:

1. **B'chol moshvoteichem means only in Israel** (following the minority opinion of Ba'al HaTerumah).
2. **Perhaps chadash only applies to produce of a Jew** — not a non-Jew's produce.

The Rama's sfek sfeka:

- Doubt 1: Is this produce from this year or stored from last year?
- Doubt 2: Even if from this year, perhaps it took root before Pesach?

The problem with this sfek sfeka: Both "doubts" are really one question — is this produce chadash or yashan? You haven't created two genuinely independent doubts. A valid sfek sfeka requires two separate, independent doubts (like the Omer example: Did I count? + Is each night a separate mitzvah?). The Acharonim say this sfek sfeka is very difficult to accept.

The Mishnah Berurah's Conclusion

The Mishnah Berurah writes: "Rov ha-olam einam chosheshim klal be-issur chadash" — most people aren't careful about chadash at all.

He acknowledges the leniencies exist but says: **one should not rely on them**. According to the Rambam, Rif, and Rosh, this is an **issur de'oraita**. Those who are lenient have what to rely on — but one should be particular.

Important principle (from the Rav): Distinguish between two types of leniencies:

1. **Interpretation-based:** "My reading of the law is lenient" — legitimate.
2. **Justification-based:** "Everyone's already doing it, so we need to find a heter" — problematic.

The chadash leniencies fall into the second category — justifications after the fact, not independent legal interpretations.

Practical Guidance for Today

Time of Year	Concern Level
After Pesach through summer	No concern. Any flour/grains on shelves now certainly took root before Pesach.
Beginning of winter (Oct–Dec onwards)	Increasing concern. New-harvest grains may enter the market. Check kashrut notifications.
For Sephardim	Must be particularly strict — no basis for the Ashkenazi leniencies.

Tip: If you want to avoid all concern — stock up on flour and grain products earlier in the year. Pay attention to kashrut authority notifications in winter months about which products may have chadash issues.

Historical note: Dayan Berkovits z"l of the Federation (London) was among the first kashrut authorities (late 1980s/early 1990s) to insist that all licensees and restaurants use only yashan produce. This awareness has grown significantly in the last 20–30 years.

Siman 493 — Customs of the Omer Period

Se'if 1 — No Weddings During the Omer

Shulchan Aruch: It is customary not to marry between Pesach and Shavuot, until Lag la-Omer (the 33rd day), because the students of Rabbi Akiva died during this time.

Important notes:

- Engagement (erusin/kiddushin) and engagement parties are permitted.
- If someone went ahead and married — they are not punished. (It is after all a minhag, not mentioned in the Talmud. Recorded from the late Geonim / early Rishonim. Not mentioned in the Rambam.)

Tradition	When Can You Marry?
Sephardim (Shulchan Aruch)	From the **34th day** (Lag la-Omer itself is still forbidden — they died on the 33rd)
Ashkenazim (Rama)	From **Lag la-Omer** (the 33rd day) onward

Se'if 2 — Haircuts and Shaving

Shulchan Aruch: It is customary not to have haircuts until Lag la-Omer.

Sephardi halacha: Must wait until the **34th day in the morning**. Cannot have a haircut during the 33rd (Lag la-Omer) itself.

Exception: If Lag la-Omer falls on a **Friday** — haircuts are permitted on Friday morning in honor of Shabbat (kevod Shabbat).

This Year's Application

Lag la-Omer falls on Thursday night / Friday. Therefore:

- **Haircuts and shaving:** Permitted from **Friday morning** — for both Sephardim and Ashkenazim — because of kevod Shabbat.
- **Weddings:** Also permitted on Friday for the same reason.

Summary of Key Practical Rulings

Topic	Ruling
Forgot to count at night	Count during the day without a bracha. Continue subsequent nights with a bracha.
Missed an entire day	Continue counting every night without a bracha. Do NOT stop counting.
Doubtful whether you missed	Continue counting with a bracha (sfek sfeka).
Know you'll miss a day in advance	Still begin counting with a bracha. When you miss, stop bracha from then on.
Bar Mitzvah boy	Majority: continue with a bracha (if counted every night before). Chacham Ovadia: without a bracha.
Convert (ger)	Count without a bracha for the rest of that year.
Onen	Count without a bracha (bare counting only — no additions).
Shabbat/Yom Tov	Count after Kiddush. Motzaei Shabbat: count before Havdalah.
Chadash	Forbidden de'oraita even nowadays, even outside Israel (majority opinion). Be particular in winter months. Sephardim especially must be strict.
Weddings during Omer	Sephardim: from 34th day. Ashkenazim: from Lag la-Omer (33rd).
Haircuts this year	Permitted from Friday morning of Lag la-Omer (falls on Friday — kevod Shabbat).

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